

UC San Diego Independent Contractor Approval Request Packet

This packet contains the required *instructions* and documentation to request approval to hire an Independent Contractor/Consultant. Review and approval of IC status must be completed *before any work is performed*.

Independent Contractor: The University *has the right* to control only the *results* of the service, not the manner of performance. Independent contractors:

- have multiple concurrent clients, advertise their services in publications
- work on separate/distinct projects
- have invested in various business-related expenses
- are engaged by the University to perform specific functions or tasks (deliverables)
- perform work outlined in a written contract

Independent Consultant: The University *does not control* either the results of the service or the manner of performance. Independent consultants:

- does not necessarily engage in consultation with multiple clients at once
- provide management advice or recommendations based on their technical knowledge as a subject matter expert, typically in the form of a written or verbal report
- perform work outlined in a written contract

Overlapping Characteristics:

- **Have no affiliation with the University**
- Are not given instruction on when, where or how to perform the work in order to produce a deliverable
- Do NOT receive training, orientation or supervision from the University
- Use their own equipment and supplies to perform contracted work
- Are “paid per job”
- Will not receive employee benefits or supervise University employees
- Do not have to follow University scheduled hours of work

If the work you are seeking does not fall within one of the two definitions above, please contact Central Human Resources for further assistance via Services and Support prior to submission.

Documents Required for Independent Contractor/Consultant Approval:

1. Independent Contractor Prehire Information form
The requesting department must complete Parts 1 through 4 of this form prior to engaging in independent contractor services. All sections of this form must be completed.
2. Statement of Work
The requesting department must complete a Statement of Work clearly describing the work for this project, detailing specific deliverables, key tasks, activities, and milestones, period of performance/completion time-frame, where the work will be performed, and rate of pay
3. UCSD Conflict of Interest Worksheet (If Required)
4. Independent Contractor/Consultant's CV and/or resume

Additional Resources

[Independent Contractor \(Self-Employed\) or Employee?](#)

[Independent Contractor/ Consultant Overview](#)

[Worker Classification and AB 5](#)

[UC Contracting for Services Guidelines](#)

[BFB-BUS-63 Insurance Requirements and Certificates of Insurance](#)

[Resources for Suppliers](#)

Instructions: Complete Parts 1 through 4 of this form. Failure to complete the following sections truthfully may result in statutory violations (e.g. Internal Revenue Service Code or California Public Contract Code) and may result in individual, department financial, or criminal penalties. *Payment for services rendered is not guaranteed* without prior approval from Procurement & Contracts.

PART 1 – REQUEST DETAILS

REQUESTING DEPARTMENT

Date:	Department Name:	UCSD System:		
Department Contact:	E-mail:	HR:	Campus	Health/Medicine
UCSD Project Manager:	E-mail:	Funding:	Federal	Non Federal

Briefly describe how the proposed contractor was identified, including extenuating circumstances.

Avoid listing professional/technical experience.

PROPOSED CONTRACTOR INFORMATION

Proposed contractor:

Doing Business As:

Email:

Website:

W-9 Business Classification:

Have services started?

Have services been fully rendered?

Will work be performed on University property?

Will University equipment or supplies be used?

Has the University previously used this Contractor?

If **yes**, please provide the PO #s and year of the services they provided:

PART 2 – ASSEMBLY BILL (AB) 5

Under the ABC Test, the hiring entity must establish all of the following to properly classify a worker as an independent contractor. Answer the questions below by selecting either "yes" or "no" (one response per row).

- A) Is the worker free from the control and direction of UC San Diego in connection with the performance of the work, both under contract and in fact?
- B) Does the worker perform work outside the usual course of the UC San Diego's business?
- C) Is the worker customarily engaged in an independently established trade, occupation, or business of the same as the work being requested and performed?

PART 3 – IRS CLASSIFICATION CHECKLIST

Answer the questions below by selecting either "yes" or "no" (one response per row) in the columns below. Additional detail regarding IRS classification factors is available on Blink under Independent Contractors.

A. Behavioral Control

Will the department give the individual instructions as to when, where, and how they're to perform the job?

Has or will the worker receive training from the University?

B. Financial Control

Has the vendor invested in facilities such as office space to perform the proposed services to commercial clientele?

Is commercial liability insurance currently available?

Will the University pay the worker's business or travel expenses in addition to the rate or fee?

Does the worker make their services available to other businesses?

Will the University pay the worker by the hour, week, or month rather than by the job?

Will the worker bear the risk of making a profit or losing money under this arrangement?

C. Relationship of Parties

Is the work to be performed part of the regular business of the University; teaching, research and/or public service?

Will a written agreement be executed between the University and the individual describing the individual as an independent contractor?

Will the individual receive any UC employee benefits?

Will the individual hire and supervise other persons on behalf of the University?

Can the individual terminate their relationship, at any time without, incurring any personal liability?

Will the individual be submitting regular oral and/or written reports to the University, other than status updates?

Will a University employee provide ongoing supervision to the individual?

Will the individual have to follow University scheduled hours of work?

PART 4 - DEPARTMENT CERTIFICATION

DEPARTMENT HEAD AUTHORIZATION AND DETERMINATION		
By authorizing this transaction, the department authority warrants and represents that the information provided is true and correct.		
Department Head Authorized Signature	Printed name:	Date:
	Title or position:	
	Email:	
This request has been:		

PART 5 – TALENT ACQUISITION CERTIFICATION

HUMAN RESOURCES AUTHORIZATION AND DETERMINATION	
Reviewers Comments:	Signature: _____
	Name: _____
	Title: _____
This request has been:	Date: _____

PART 6 – PROCUREMENT AND CONTRACTS

PROCUREMENT & CONTRACTS AUTHORIZATION AND DETERMINATION	
Procurement's Comments:	Signature: _____
	Name: _____
	Title: _____
Approval Usage:	Date: _____
Additional Routing:	Request # _____

**UC San Diego Independent Contractor/Consultant
STATEMENT OF WORK**

1. **Funding Source:** Non Federal Federal

Please complete for Federal funding only:

Prime Sponsor:

Agreement/Grant #:

UC San Diego PI:

Project Title:

FAIN #:

Award Budget Period:

Award Project Period:

2. **UCSD Sponsoring Department:**

3. **UCSD Project Manager:**

4. **Supplier Name:**

5. **Supplier's Project Manager:**

6. **Period of performance:** _____ to _____

7. **Location of Services:**

8. **Payment Rate:**

9. **Total not to Exceed:**

10. Attach a copy of any **written proposals, quotes, or any other documentation** that exists between the University and the supplier.

11. **Scope of Work:** Be sure to include specific deliverables and project timeline with milestone.

UC PROCUREMENT SERVICES
REPORT AND CERTIFICATION OF PROPOSED TRANSACTION
INVOLVING A POTENTIAL CONFLICT OF INTEREST

Each individual or company offering to provide goods or services to the University must complete this form if that individual or company meets any of the below criteria:

- A. Are or owned by a current UC employee of any location
- B. Are or owned by a former UC employee of any location, who has been separated for less than two (2) years (retired, dismissed, separated, or formerly employed)
- C. Are or owned by a current UC employee of any location, who owns or controls 10% or greater interest in a business that will provide goods or services to the University
- D. Are or owned by a near relative of a current UC employee of any location (*spouse, domestic partner or relative of the domestic partner, child, parent, brother, sister, son-in-law, daughter-in-law, father-in-law, mother-in-law, brother-in-law, or sister-in-law of a University employee, and step-relatives in the same relationship*)
- E. Are or owned by a near relative of a current UC employee of any location, when that near relative owns or controls 10% or greater interest in a business that will provide goods or services to the University
- F. Any UC employee associated with the proposed supplier.

None of the above apply to me: _____

If you are selecting "None of the above apply to me", type your name in the space provided and this form is considered complete

Full Legal Name of proposed supplier:	Name of UC Employee:
Which of the above listed criteria (A-F) best meets your situation?	Financial Interest: %

Please indicate which of the following is applicable:

I am a:

☐ current UC employee			
UC location where employed	Department where employed	Job Title	
Does your position include teaching or research responsibilities? ☐ YES ☐ NO			
Briefly describe why this is the only vendor capable of meeting the University's needs:			
☐ former UC employee, who has been separated for less than two (2) years (retired, dismissed, separated, or formerly employed)			
UC location where employed	Department where employed	Job Title	Separation Date:
☐ near relative of a current UC employee (spouse, child, parent, brother, sister, son-in-law, daughter-in-law, father-in-law, mother-in-law, brother-in-law, sister-in-law, and step relatives and domestic partners in the same relationship)			
Name of relative (UC employee)		Name of relative (Proposed Vendor)	
Relationship to current UC employee		Relative's UC Campus and Department	

Current employees ONLY: Do you/Did engage in any of the negotiations, transactions, planning, arrangements, or any part of the decision making process relevant to the transaction while employed by any University location?

Current employees ONLY: Has any/Did any of your University time, University material, University equipment, or was University facilities used or will be used in connection with the proposed transaction?

Former employees ONLY: Did engage in any of the negotiations, transactions, planning, arrangements, or any part of the decision making process relevant to the transaction while employed by any University location?

Former employees ONLY: Did any of your University time, University material, University equipment, or was University facilities used in connection with the proposed transaction?

Former employees ONLY: Did you hold a policy-making position in the same general subject area as the proposed transaction, during the last twelve (12) months of UC employment?

Relatives of UC employees ONLY: Does your near relative have any past, current, or future responsibility for, involvement in, or direct or indirect influence on any of the negotiations, transactions, planning, arrangements, or any part of the decision making process relevant to the proposed transaction?

If you answered YES to any of the above questions, please explain. Attach additional sheet if needed:

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Required - Describe the goods and/or services:

Have the goods and/or services already been provided to the UC?

Are these goods and/or services available in the commercial market by other providers?

I certify that the above information is true: _____
Signature of UC employee, former UC employee, or near relative of current UC employee

Date: _____

UC Department Certification ONLY

Are these goods and/or services available from the University’s own facilities?

Are these goods and/or services available commercially?

How did your department learn of this provider?

Employee’s Department Head	Signature	Date
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UC LOCATION PROCUREMENT ONLY

Request ID

Funding Source

Has this supplier gone through the conflict of interest process before?

Other Administrative Approval: Date

Chief Procurement Officer Designee: Date

Chief Procurement Officer: Date

Approves Denies Exception

WHEN COMPLETED, ATTACH TO THE REQUISITION DOCUMENT, PROVIDE A COPY TO EMPLOYEE, AND A COPY TO THE DEPARTMENT.